monitoring team reaches out to customers to confirm transactions on system-generated alerts, based on the profile, demographic, spend pattern, merchant category, etc. "We have invested in new technology such as RASP or Run Time Application Self Protection technology for our mobile app," adds Agrawal. "It blacks out the mobile app in case the screen-sharing app is active on the customer's phone."

With the rising scale of cybercrime, corporates have also begun issuing advisories to employees on how to protect themselves against fraud. Google recently launched an initiative called 'Raho Do Kadam Aage', along with the National Payments Corporation of India. Roping in actress Sania Malhotra to spread the message, it issued front-page advertisements in prominent national dailies.

The law enforcers, meanwhile, are trying to tackle the root of the problem—the fake SIM card racket that helps crooks evade identification. Deactivating phone numbers that do not conform to KYC norms has now become a regular part of their job. In Tamil Nadu, the cybercrime wing is collaborating with the Department of Telecommunication (DoT) to block the IMEI number of stolen devices to disable them and prevent their use in crooked pursuits. Between April and July 2021, DoT also developed ASTR, an Artificial Intelligence and facial recognition-powered solution for telecom SIM subscriber verification—it runs checks on subscriber databases of telecom operators to see if there are multiple connections in a single person's name. While speaking on telecom reforms recently, Union communications minister Ashwini Vaishnaw said that nearly 5.2 million mobile connections using fake documents had been deactivated up to August, 67,000 SIM card dealers blacklisted and 300 FIRs filed in cases where intent to commit fraud seemed apparent.

The bulk sale of SIM cards has also been banned, and registration of franchisees and points of sale (PoS) agents and distributors of telecom companies, besides police verification of SIM card dealers, was made mandatory. As part of PoS registration, a window of 12 months is given for compliance. The seller has to agree in writing that he'll be liable to a Rs 10 lakh penalty besides termination of his association with the telco if found indulging in illegal practices.



"In 2003–04, there were 20–25 cases a day. Now, there are more than a million in a year. With emerging technologies, cybercrimes have not only become more complex and innovative but also much larger in number"

–GULSHAN RAI, *Former National Cyber Security Coordinator*

Earlier in May, the government had launched the Sanchar Saathi portal, envisaged as a safe digital space for telecom subscribers. Citizens can use its Telecom Analytics for Fraud Management and Consumer Protection (TAFCOP) module to check the number of connections in their names and report unauthorised ones.

NAILING THE FRAUDSTERS

At the policy level, too, the government is taking cognisance of how acute the problem of cybercrime has become. Addressing the inaugural session of the G20 Conference on Crime and Security in the age of NFTs, Artificial Intelligence and Metaverse in July, Union home minister Amit Shah had said, "The government of India under the leadership of Prime Minister Modi has worked towards outlining a uniform cyber strategy, real-time reporting of cybercrimes, capacity-building of LEAs [law enforcement agencies], designing analytical tools and setting up a national network of forensic laboratories, ensuring cyber hygiene, and spreading cyber awareness to every citizen. The Crime and Criminal Tracking Network and System (CCTNS) has been implemented in all police stations of the country." Like the Federal Bureau of Investigation's Internet Crime Complaint Centre (IC3), India has established the Indian Cyber-Crime Coordination Centre (I4C) to ensure a comprehensive response against cybercrime, besides an open online courses platform called 'CyTrain'. A parliamentary standing committee on finance headed by BJP MP Jayant Sinha has also been examining the issue of cyber security and meeting with various stakeholders. Among its recommendations is the formation of a centralised Cyber Protection Authority.

What about the law? Theft of data, passwords, identity, sending phishing mails or tampering with computers attracts imprisonment of a mere three years under the IT Act. Indian Penal Code provisions such as Sections 420 or 468 kick in only if it becomes a case of cheating or of forgery for the purpose of cheating, respectively, with the jail term going up to seven years in both cases. Most penal provisions for cybercrime under the IT Act are bailable, and thus offer scant deterrence. The Patna High Court last year stressed the need to hit at the illegal wealth of the cyber criminals and suggested that their assets and financial transactions be brought under the scanner of Income Tax Department and Enforcement Directorate.

However, as Roy points out, "What's needed is not more laws but the will and capacity in the financial system and law enforcement to implement them. And to fill in the huge gaps in digital literacy and consumer awareness rights." Ultimately, the responsibility to protect yourself against cyber fraud lies with you. Eternal vigilance is what is required for liberty from the clutches of the phisherman. ■

–with IT bureau